

Matter Number:	WC	/	2024	/	227
----------------	----	---	------	---	-----

Form 24 – Notice to admit facts

Industrial Relations Act 2016, section 989

Industrial Relations (Tribunals) Rules 2011, rules 41, 49, 108 and 113

Applicant/Appellant:	Cory Lea Shepherd
-----------------------------	-------------------

v

Respondent:	Workers' Compensation Regulator
--------------------	---------------------------------

PLEASE NOTE: If there are more than two parties to this application, please complete a **Form 1 – Parties list** and file it with this form.

To:	Workers' Compensation Regulator Attention: Ms Renee Matheson, Senior Appeals Officer PO Box 10119, Brisbane Adelaide Street QLD 4000
------------	--

Take notice that the [] applicant **[X] appellant** [] respondent in this proceeding proposes to prove the facts specified below, and if you do not within 14 days serve a notice on the [] applicant **[X] appellant** [] respondent disputing the facts you are taken to admit, for this proceeding only, the facts specified in this notice.

No.	Fact to be Admitted (with Exhibit Reference)	Admit / Deny
A	THE EMPLOYMENT, AND THE HOURS THE APPELLANT SOUGHT	
1	The Appellant has been employed by Metro South Hospital and Health Service since 2019.	
2	On 7 August 2023 at 12:21 pm the Appellant sent an email to Ms Chloe Taylor, Ms Tammy Reese, Ms Patricia Conaghan and Ms Tracey Smith, marked of High importance, which states: "Furthermore, to meet the demands and the additional hours of the department both Patricia Conaghan and I would like to formally adhoc an additional 2 shifts per fortnight."	
3	That email sets out clause 11.7 of the applicable agreement, headed "Additional Permanent Hours for Part-time Employees".	
4	On 8 August 2023 at 6:06 pm the Appellant sent an email to Ms Reese which states: "I can confirm that I will be in tomorrow 0700-1500 9th August. I was also looking to pick up another shift if possible."	
5	On 8 August 2023 at 4:15 pm Ms Reese sent an email to the Appellant which states: "can I ask were you looking for another shift on top of those 8 to replace the shift missed today also?"	
6	On 31 August 2023 the Appellant provided to Ms Taylor a written application headed "Request to Increase Working Hours to Full Time Rotational Roster".	
7	That application states: "I have also expressed my willingness to take on additional night shifts as part of the roster."	
8	On 4 September 2023 the Appellant sent an email to Ms Reese which states: "I confirm that I am able and willing to work any roster that is presented to me, including the current schedule with full 24-hour availability."	
9	That email states: "I have no issues with shift work."	

No.	Fact to be Admitted (with Exhibit Reference)	Admit / Deny
10	That email attached a draft roster spreadsheet prepared by the Appellant.	
11	On 8 September 2023 at 11:42 am Ms Reese sent an email to the Appellant which states: "I am glad to hear things seem to be going well with Chloe and I am also glad to hear you applied for the additional shifts through the recent EOI."	
12	On 27 September 2023 at 1:52 pm Ms Taylor sent an email to the Appellant with the subject "Approved - Permanent Full Time FTE" which states: "Just giving you an update on your application for Permanent Fulltime hours, I am very pleased to advise you that this has been approved."	
13	That email states: "happy to commence Full-time hours from the 16th October 2023".	
B	THE MATTERS RAISED IN AUGUST AND SEPTEMBER 2023, AND THE RESPONSE TO THEM	
14	The Appellant's email of 7 August 2023 at 12:21 pm states: "Please give me some space and stop with any further communication as I have had enough of it."	
15	On 7 August 2023 at 1:43 pm Ms Taylor replied to the Appellant, copied to Ms Reese and Ms Smith, stating: "My sincere apologies about your rostered Monday 7th 0700-1500 shift, I can confirm this was an oversight."	
16	That email of Ms Taylor states: "Would you like me to roster you off tomorrow Tuesday 8th 0700-1500 to give you the required rest period".	
17	On 7 August 2023 at 3:13 pm Ms Reese replied to the Appellant stating: "As Chloe is your current line manager and as such you are required to continue to communicate with Chloe for work related issues, shift concerns, leave, etc."	
18	On 7 August 2023 at 5:11 pm Ms Reese sent an email to Ms Taylor attaching a document titled "Rostered shifts Cory S. past 8 months.xlsx", which states: "can I ask if you can send me an email of your recent communication with Cory about contacting yourself about missed shifts, as I could not find a copy of this email."	
19	On 29 August 2023 at 6:57 pm Ms Reese sent the Appellant an email attaching HR Policy E12 - Individual Employee Grievances, and setting out how a grievance could be submitted.	
20	On 4 September 2023 the Appellant replied to Ms Reese stating: "I have also spoken to Chloe. We are seemingly on the path to working in a beneficial way and hopefully will not need to go through this process."	
21	The Appellant did not submit a grievance under HR Policy E12 in 2023.	
C	THE PROCESS FOR NOTIFYING UNAVAILABILITY FOR A ROSTERED SHIFT	
22	On 15 April 2024 at 12:39 pm Ms Taylor sent an email to Logan Switch, copied to Ms Reese and to Switchboard staff including the Appellant, with the subject "Afterhours Oncall Process - Switchboard".	
23	That email states: "Process during office hours remains the same, please contact myself through switch/office or mobile unless otherwise advised."	
24	That email states: "This new process is effective from today."	
25	That email states: "You will see that Ellen and myself have added Afterhours on call, the days that are highlighted in purple show who is on call after hours."	
26	Ms Taylor signed that email as "A/Switchboard Manager".	
27	On 14 May 2024 at 12:08 pm Ms Taylor sent an email to the Appellant, copied to Ms Reese, with the subject "Sick leave 14.05.24", which states: "in business hours you are to follow the correct process and speak to me directly if its regarding emergent leave, you can contact me either through switch or my office/mobile."	

No.	Fact to be Admitted (with Exhibit Reference)	Admit / Deny
28	On 17 May 2024 at 9:30 am Ms Taylor sent an email to Logan Switch and Switchboard staff, copied to Ms Reese, which states: "regardless of my start/finish times next week you are to please contact me through the day/afterhours either via switch, office or mobile."	
29	On 17 May 2024 at 1:20 pm Ms Taylor sent an email to Ms Adriana McNamee with the subject "FW: Office Hours and Departmental Directives", which states: "when staff call in for any leave to please contact me either via switch, office or my mobile."	
30	On 13, 14 and 15 May 2024 the Appellant notified his unavailability for his rostered shift by telephoning the Switchboard.	
31	The document entitled "Logan Hospital Switchboard Sick Leave Process", version 1.1, is dated 4 February 2025.	
D	ROSTER CONCERNS AND THE EMPLOYER'S KNOWLEDGE OF FATIGUE BEFORE 18 JUNE 2024	
32	On 26 April 2024 at 1:52 pm Ms Reese sent an email to the Appellant with the subject "Roster Concerns", referring to a meeting on 16 April 2024 at which the Appellant raised a roster line ending with night shifts followed by three days off and then returning to night shifts.	
33	That email states that Ms Taylor "was working to fix this error and would get in touch with you about what alternative shifts she could offer".	
34	On 1 May 2024 at 1:18 pm the Appellant sent an email to Ms Reese with the subject "Roster Concerns" referring to section 4, clause 10.4.1 of the Operations Manual and stating: "This section includes a toolkit required by management to manage fatigue and implement appropriate protocols and adhere to the workplace health and safety act."	
35	That email states: "I forwarded the toolkit to Chloe last week for review and action but have yet to receive feedback".	
36	On 8 May 2024 at 9:08 am Ms Reese replied to the Appellant stating: "Thanks for raising these observations and concerns. I am following up with regards to these with HR for further advice and I will get back to you asap with a response."	
37	On 10 May 2024 at 2:08 pm Ms Reese sent an email to Mr Mackenzie Pritchard of Human Resources forwarding the Appellant's email of 1 May 2024, which states: "I think he is trying to raise that he has concerns over how his manager is rostering for the Switchboard team and how it is impacting on staff fatigue, or more specifically his fatigue."	
38	That email states: "as per Cory's second extract detailing the Roster Risk assessment Matrix, Chloe and I have run through this and we say at best there would be a rating of 11 which is moderate".	
39	That email states: "I acknowledge there has been a few rostering errors made by Chloe with regards to Cory's line in past rosters".	
40	That email attached the document "qh-gdl-401-3.3", being the Queensland Health Fatigue Risk Management Systems Implementation Guideline.	
41	On 20 May 2024 at 4:07 pm Ms Reese sent an email to LBH_HR which states: "I am just following up on this query I raised a little while ago in relation to a email I had received from a staff member about our rostering practices. Thus if someone might be able to give me a call regarding these staff concerns, that would be great."	
F	THE APPELLANT'S CONTEMPORANEOUS ACCOUNT, AND THE DOCUMENTS THE RESPONDENT LISTS	
48	The Respondent's amended List of Documents dated 14 August 2026 lists at item 12 an email from the Appellant to WorkCover Queensland dated 12 July 2024 with the attachment described as "Event overview - undated".	

No.	Fact to be Admitted (with Exhibit Reference)	Admit / Deny
49	That amended List of Documents lists at item 14 an email from the Appellant to WorkCover Queensland dated 18 July 2024 with the attachment described as "Witness statement - Carolyn Jeffrey".	
50	That amended List of Documents lists at item 16 an email from Ms Carolyn Jeffrey to WorkCover Queensland dated 1 August 2024 described as a follow up statement.	
51	That amended List of Documents lists at item 25 an email from the Appellant to WorkCover Queensland dated 29 August 2024 described as regarding the after hours on call change, with the attachment described as "Email: After hours on call process".	
52	That amended List of Documents lists at item 26 an email from the Appellant to WorkCover Queensland dated 30 August 2024 described as regarding failure to consult, with the attachment described as "Email: Task change switchboard - 19/04/2024".	
53	That amended List of Documents lists at item 27 an email from the Appellant to WorkCover Queensland dated 30 August 2024 described as regarding failure to consult, with the attachment described as "Email: MASPER process - 09/05/2024".	
54	The Appellant provided the document described at item 12 to WorkCover Queensland on 12 July 2024.	
G	THE DOCUMENTS PARTICULARISING STRESSOR 1(a), SERVED ON THE RESPONDENT 11 AUGUST 2026	
55	On 11 August 2026 the Appellant served on the Respondent a bundle titled "Stressor 1(a) - Particulars support bundle", comprising 30 pages and six tabs, each stating a particular of Stressor 1(a) of the Amended Form 9A and enclosing the documents recording it.	
56	On 15 May 2024 at 11:47 am Ms Sue Marriott, Administration Officer, Integrated Respiratory Service, sent an email to Logan Switch, marked of High importance, which states: "Could you please amend your number registry/directory to show #8768 belongs to the Integrated Respiratory Service... We are not Respiratory Medical OPD and we do not have any doctors working out of this area."	
57	On 20 May 2024 at 11:03 am Ms Marriott sent a further email to Logan Switch, marked of High importance, which states: "Just a courtesy reminder, we continue to get calls put through to us for Respiratory Medical Outpatients... we can not help patients or other clinical staff with OPD issues."	
58	On 20 May 2024 at 2:05 pm the Appellant sent an email to Ms Taylor, marked of High importance, which states: "switchboard staff may not be aware of the clinics due to modifications to the Document: Outpatients Department - Clinic contact Details. on the 22nd of February 2024. I recommend a modification and review of the document."	
59	On 20 May 2024 at 4:30 pm Ms Taylor replied to the Appellant, stating: "Thank you for bringing this to my attention however this task was being actioned. I had discussed with Richard this morning about the update of outpatients respiratory/medical."	
60	That reply of Ms Taylor states: "Taking note of your recommendation, we can also put the updated procedures out to the team for consultation before implementing."	
61	Ms Taylor's email to all Switchboard staff of 17 May 2024 at 9:30 am states: "My office hours can vary due to having to take my girls to school in the morning, on the days that I do have school drop off I always let switch know that I will be in later between 0800-830am. Otherwise my hours are from 06:30-14:30."	
62	That email states: "Moving forward so communication is clear for the team, I will be sending an email to switch to advise of any change to my office hours for the week."	
H	THE BREAK OF 17-18 MARCH 2024, THE 2020 AGREEMENT, AND THE LEAVE TAKEN ON 19 MARCH 2024	

No.	Fact to be Admitted (with Exhibit Reference)	Admit / Deny
63	By letter dated 7 July 2026 Ms Lyndelle Forrest, Senior Consultant, Human Resources, Logan and Beaudesert Health Service, wrote to the Appellant stating that the roster "provides more than 10-hour breaks between shifts".	
64	That letter states: "acknowledge you also signed an 8 hour agreement on 17 June 2020, which allows you to work with only an 8 hour break, however this is only applied where staff initiated shift swaps have occurred."	
65	The Respondent does not allege that the consecutive shifts of 17 and 18 March 2024 arose from a staff initiated shift swap.	
66	The Leave Takings Report produced by Metro South Hospital and Health Service in respect of 19 March 2024 records the Leave Category as "Sick", the Leave Type as "Sick Leave", the Time Code as "SCK", the Leave Taken as 7.60 hours, and the Leave Status as "APPROVED".	
67	The Respondent's amended statement of facts and contentions dated 13 May 2026 states at paragraph 24(a): "says that the appellant took leave on 19 March 2024 but says this was paid leave".	
68	That amended statement of facts and contentions states at paragraph 24(b): "says that pursuant to clause 18.10 of the Award, the appellant is not entitled to fatigue leave, because he was not performing overtime".	
69	That amended statement of facts and contentions states at paragraph 27: "The respondent contends that any management action involved in the causation of any injury to the Plaintiff was reasonable management action taken in a reasonable way pursuant to s 32(5) WCRA."	
I	MATTERS NOT DONE, AND MATTERS NOT AVAILABLE	
70	The Respondent does not allege that any fatigue risk assessment was conducted in respect of the Appellant's position at any time before 30 June 2024.	
71	The Respondent does not allege that any fatigue risk management training was provided to the Appellant in respect of his position at any time before 30 June 2024.	
72	The Respondent does not allege that fatigue risk management assessment was implemented at Logan Hospital Switchboard at any time before 30 June 2024.	
73	No fatigue leave was available to the Appellant under clause 18.10 of the Award in respect of the consecutive shifts of 17 and 18 March 2024.	
74	The Respondent does not allege that any written procedure governing the notification of unavailability for a rostered shift at Logan Hospital Switchboard existed before 4 February 2025.	
75	The Respondent does not allege that any change was made to the operating procedures of Logan Hospital Switchboard as a consequence of any employee complaint over the period 1 December 2023 to 30 June 2024.	
76	The Respondent has not disclosed any document recording consultation with Switchboard operators before the change communicated by the email of 15 April 2024.	
J	THE RESPONDENT'S OWN REVIEW DECISION OF 24 OCTOBER 2024	
77	Review Decision 69983 dated 24 October 2024 records that in its response the employer included an extract of the Hospital and Health Services General Employees (Queensland Health) Award which "stated that employees must be provided with a break of not less than 10 hours between the termination of one shift and the commencement of another shift, and 8 hours applied instead of 10 only in specific circumstances".	
78	That decision states: "The break between the shift on 17 March 2024 and 18 March 2024 equated to 7 hours."	

No.	Fact to be Admitted (with Exhibit Reference)	Admit / Deny
79	That decision states: "Even if you were allowed to leave early on 17 March 2024 as suggested by the employer, you left a maximum of 30 minutes early, which meant you still did not receive a minimum 8-hour break."	
80	That decision states: "Based on this, I find the rostering of these two shifts amounted to unreasonable management action given that it was in direct contradiction to the award and the 8-hour agreement."	
81	That decision states, under the heading "Conclusion": "you sustained a personal injury of a psychological nature".	
82	That decision states, under the heading "Conclusion": "your injury arose out of employment, to the extent that it arose out of factors 2, 3 and 4, where employment was a significant contributing factor".	
K	MATTERS THE RESPONDENT DOES NOT ALLEGE	
83	The Respondent does not allege that the Appellant was subject to any disciplinary process at any time before 18 June 2024.	
84	The Respondent does not allege that the Appellant's work performance was the subject of any formal performance management process at any time before 18 June 2024.	
85	The Respondent does not allege that the Appellant was the subject of any warning, whether written or oral, at any time before 18 June 2024.	
86	The Respondent's amended statement of facts and contentions does not identify the management action referred to in paragraph 27.	
E	THE EMPLOYER'S OWN STATEMENTS ABOUT ITS SYSTEMS AND RECORDS	
42	By letter dated 5 June 2026, reference K-LM26/729, signed by Ms Noelle Cridland as Chief Executive of Metro South Hospital and Health Service and addressed to Commissioner Dwyer, Metro South Health stated in relation to Item 4: "the requested documents do not exist. Mandatory Fatigue Risk Management System training only applies to health practitioners and clinical assistants. The Logan Hospital Switchboard staff are non-clinical staff, and therefore there is no mandatory requirement for them to complete Fatigue Risk Management System training."	
43	That letter states in relation to Item 5: "The implementation of fatigue risk management assessment at Switchboard Logan Hospital occurred after 30 June 2024 in connection with an organisational change related to the reporting lines for Switchboard."	
44	That letter states in relation to Item 7: "the requested documents do not exist. Mandatory Fatigue Risk Management System training only applies to health practitioners and clinical assistants."	
45	That letter states in relation to Item 3(c): "there have been no 'consequential' changes to operating procedures over the period requested."	
46	That letter states in relation to Item 3(a): "All employee complaints relating to Logan Hospital Switchboard operational errors are made directly to the Line Manager of Switch Board and managed solely via email or verbally with the complainant."	
47	That letter states in relation to Items 1 and 2: "a spreadsheet of recorded MET calls is available for the period 17-18 March 2024."	

Signature:	
Print name:	Cory Lea Shepherd
Title of office held:	Appellant (self-represented)

Date:	____ / ____ / ____
--------------	--------------------

ANNEXURE A – DOCUMENTS

Authenticity to be admitted – Industrial Relations (Tribunals) Rules 2011, rule 49

Take notice that the appellant also asks the respondent to admit, for this proceeding only, the authenticity of the documents specified below, and that if the respondent does not within 14 days after receiving this notice serve a notice on the appellant disputing the authenticity of those documents, the respondent is taken to admit their authenticity for this proceeding only.

No.	Document	Date	Authenticity admitted / disputed
1	Email, the Appellant to Ms C Taylor, Ms T Reese, Ms P Conaghan and Ms T Smith, "Increase of hours and Workplace issues"	7 August 2023, 12:21 pm	
2	Email, Ms C Taylor to the Appellant, reply in the same chain	7 August 2023, 1:43 pm	
3	Email, Ms T Reese to the Appellant, reply in the same chain	7 August 2023, 3:13 pm	
4	Email, Ms T Reese to Ms C Taylor, with attachment "Rostered shifts Cory S. past 8 months.xlsx"	7 August 2023, 5:11 pm	
5	Email, Ms T Reese to the Appellant, attaching HR Policy E12 - Individual Employee Grievances	29 August 2023	
6	Document, the Appellant to Ms C Taylor, "Request to Increase Working Hours to Full Time Rotational Roster"	31 August 2023	
7	Email, the Appellant to Ms T Reese, with attached draft roster	4 September 2023	
8	Email, Ms T Reese to the Appellant	8 September 2023, 11:42 am	
9	Email, Ms C Taylor to the Appellant, "Approved - Permanent Full Time FTE"	27 September 2023, 1:52 pm	
10	Email, Ms C Taylor to Logan Switch and Switchboard staff, "Afterhours Oncall Process - Switchboard"	15 April 2024, 12:39 pm	
11	Email, Ms T Reese to the Appellant, "Roster Concerns"	26 April 2024, 1:52 pm	
12	Email, the Appellant to Ms T Reese, "Re: Roster Concerns"	1 May 2024, 1:18 pm	
13	Email, Ms T Reese to the Appellant, "RE: Roster Concerns"	8 May 2024, 9:08 am	
14	Email, Ms T Reese to Mr M Pritchard, "FW: Roster Concerns", with attachment "qh-gdl-401-3.3"	10 May 2024, 2:08 pm	
15	Email, Ms C Taylor to the Appellant, "Sick leave 14.05.24"	14 May 2024, 12:08 pm	
16	Email, Ms S Marriott to Logan Switch, "Respiratory Nurse Educators"	15 May 2024, 11:47 am	
17	Email, Ms C Taylor to Logan Switch and Switchboard staff, "Switchboard Manager - On call and Hours."	17 May 2024, 9:30 am	

No.	Document	Date	Authenticity admitted / disputed
18	Email, Ms C Taylor to Ms A McNamee, "FW: Office Hours and Departmental Directives"	17 May 2024, 1:20 pm	
19	Email, Ms S Marriott to Logan Switch, "FW: Respiratory Nurse Educators"	20 May 2024, 11:03 am	
20	Email, the Appellant (Logan Switch) to Ms C Taylor, "FW: Respiratory Nurse Educators"	20 May 2024, 2:05 pm	
21	Email, Ms C Taylor to the Appellant, "RE: Respiratory Nurse Educators"	20 May 2024, 4:30 pm	
22	Email, Ms T Reese to LBH_HR, "FW: Roster Concerns"	20 May 2024, 4:07 pm	
23	Document, "Logan Hospital Switchboard Sick Leave Process", version 1.1	4 February 2025	
24	Letter, Metro South Hospital and Health Service to Commissioner Dwyer, reference K-LM26/729, signed by Ms N Cridland, Chief Executive	5 June 2026	
25	Document, QH Leave Takings Report for the Appellant, produced by Metro South Health as item 15 of the Notice of non-party disclosure	19 March 2024	
26	Letter, Ms L Forrest, Senior Consultant Human Resources, Logan and Beaudesert Health Service, to the Appellant	7 July 2026	
27	Review Decision 69983, Workers' Compensation Regulator	24 October 2024	

Signature:	
Print name:	Cory Lea Shepherd
Title of office held:	Appellant (self-represented)
Date:	____ / ____ / _____

BEFORE SERVICE - delete this note. (1) Verify every quotation against its source document. (2) Check the radio selections above: the appellant proposes to prove the facts, and the notice is served on the respondent. (3) Confirm this is the current version of Form 24 on the Commission's website before filing or serving. (4) Sign and date both signature blocks.